

Court No. - 29

Case :- WRIT - C No. - 4684 of 2021

Petitioner :- Dulare Prasad Tiwari

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Arun Kumar Pandey

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Pankaj Naqvi,J.

Hon'ble Piyush Agrawal,J.

Heard Shri Arun Kumar Pandey, learned counsel for the petitioner, Shri Baleshwar Chaturvedi, learned counsel for the respondent nos. 1 & 2 and learned standing counsel for the State - respondent no. 3.

Learned counsel for the petitioner submits that electricity connection for running the tubewell was in the name of petitioner's father, on 11.01.2018, his father died leaving behind his two sons. Thereafter, petitioner applied for transfer of electricity connection in his favour as per Electricity Supply Code - 4544 in the prescribed format, along with a consent letter and an affidavit of his brother. Since then, the petitioner is continuously paying the electricity bill as and when the same is due. On 28.12.2020, respondent - Corporation issued a letter to the petitioner stating that a complaint has been received from his brother and therefore, the petitioner has to submit an affidavit of his brother giving consent for mutation of his name, failing which the electricity connection will be disconnected.

Learned counsel for the petitioner further submits that under the garb of the impugned order dated 28.12.2020 without disclosing the date of said complaint, respondents are pressurizing and harassing the petitioner for electricity disconnection.

Learned counsel for the respondent - Corporation has opposed the submission made by the petitioner and tried to justify the impugned order.

No useful purpose would be served by keeping this writ petition pending and the same is disposed of with the direction to the petitioner to submit 'No Objection Certificate' supported by an affidavit of his brother along with a copy of this order within two weeks from today and on receipt of the same, the competent authority shall take a decision, as expeditiously as possible, preferably within six weeks thereafter, in accordance with law.

Ordered accordingly.

Order Date :- 18.2.2021/Amit Mishra